RESOLUTION NO. 2026-084

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF CULVER CITY, CALIFORNIA, CALLING FOR THE PLACEMENT OF A MEASURE ON THE BALLOT FOR THE NOVEMBER 3, 2026 GENERAL MUNICIPAL ELECTION FOR THE SUBMISSION TO THE QUALIFIED VOTERS OF AN ORDINANCE TO INCREASE THE RATE OF THE TRANSIENT OCCUPANCY TAX (HOTEL TAX) TO THE RATE OF 15% UNTIL MARCH 1, 2028, AND THEN TO 16%.

WHEREAS, the City Council of the City of Culver City is authorized to levy a Transient Occupancy Tax for general purposes pursuant to California Revenue and Taxation Code § 7285.9, subject to approval by a majority vote of all members of the City Council and by a majority vote of the electorate pursuant to Article XIIIC, §2 of the California Constitution ("Proposition 218"); and

WHEREAS, pursuant to California Elections Code § 9222, the City Council has authority to place initiative measures on the ballot to be considered at a Municipal Election; and

WHEREAS, Culver City Municipal Code section 11.02.105 currently imposes a Transient Occupancy Tax ("TOT") at the rate of fourteen percent (14%) of the rent charged by the operator; and

WHEREAS, the City Council wishes to submit to the voters an initiative measure raising the rate of the City's TOT to fifteen percent (15%) of the rent charged by the operator, for approximately one year, and then again to sixteen percent (16%); and

WHEREAS, the TOT is a general tax, the revenue of which will be placed in the City's general fund and will be used to pay for general City services; and

WHEREAS, revenue generated by this measure can be used to address community identified spending priorities, such as: maintaining high quality transit services, maintaining local 911, police and fire services, preventing and investigating property crimes like thefts and burglaries, keeping fire stations operating at current levels, and maintaining police patrols around neighborhood schools and parks; and

WHEREAS, pursuant to Proposition 218 (California Constitution Article XIIIC, §2(b)), an election for the approval of a new or increased general tax must generally be consolidated with a regularly scheduled general election for members of the governing body of the local government; and

WHEREAS, by adoption of Resolution No. 2026-R076, on June 22, 2026 the City Council called a General Municipal Election for the purpose of electing two members of the City Council, said Election to be consolidated with the Statewide General Election to be held on Tuesday, November 3, 2026; and

WHEREAS, the initiative ordinance to be considered by the qualified voters for the amendment of the Municipal Code to increase the TOT are described and provided for in the initiative ballot measure attached hereto as Exhibit "A" (the "Measure") and by this reference made an operative part hereof, in accordance with all applicable laws.

NOW, THEREFORE, the City Council of the City of Culver City, California, DOES HEREBY RESOLVE, as follows:

SECTION 1. Findings. The City Council finds that all the preceding recitals are true and correct and are hereby incorporated and adopted as findings and determinations by the City Council as if fully set forth herein.

SECTION 2. Submission of Measure. Pursuant to California Constitution, Article XIIIC, Section 2(b), California Elections Code § 9222, and any other applicable

requirements of the laws of the State of California relating to charter cities, the City Council hereby orders the Ordinance attached hereto as "Exhibit A" to be submitted to the qualified voters of the City at the General Municipal Election to be held and consolidated with the Statewide General Election on Tuesday, November 3, 2026. The proposed Ordinance shall be in the form attached hereto as Exhibit "A" to this Resolution and is incorporated by this reference as if fully set forth herein.

SECTION 3. The Measure shall be presented and printed upon the ballot submitted to the voters in the manner and form set forth in this Section 3. On the ballot to be submitted to the qualified voters at the General Municipal Election to be held on Tuesday, November 3, 2026, in addition to any other matters required by law, there shall be printed substantially the following:

Shall an ordinance to maintain Culver City emergency response/ firefighter/ paramedic/ police staffing; affordable housing/ mental health/ homeless reduction programs; improve streets, sidewalks, public transportation, infrastructure, parks and other general fund services by raising Culver City's transient occupancy tax paid by hotel/ motel guests from 14% to 15% until March 1, 2028, and then to 16%, generating up to approximately $2,000,000 annually until ended by voters, requiring annual audits, public spending disclosures, with all funds used locally, be adopted?	YES
	NO

SECTION 4. *Conduct of Election.* The City Council consents to the consolidation of the election on this measure with all other elections being held in the same territory on November 3, 2026, and to hold and conduct the consolidated election in the manner prescribed in Elections Code Section 10418.

SECTION 5. *Notice of Election*. Notice of the time and place of holding the election is hereby given, and the City Clerk is authorized, instructed, and directed to give further or additional notice of the election, in time, form and manner as required by law.

SECTION 6. *Impartial Analysis.* Pursuant to California Elections Code Section 9280, the City Council hereby directs the City Clerk to transmit a copy of the Measure as set forth herein to the City Attorney. The City Attorney shall prepare an impartial analysis of the Measure, not to exceed 500 words in length, showing the effect of the Measure on the existing law and the operation of the measure, and transmit such impartial analysis to the City Clerk not later than end of business on August 14, 2026.

SECTION 7. *Filing with County.* The City Clerk shall, not later than the 88th day prior to the Special Municipal Election to be held on Tuesday, November 3, 2026, file with the Board of Supervisors and the County Clerk - Registrar of Voters of the County of Los Angeles, State of California, a certified copy of this Resolution.

SECTION 8. *Public Examination.* Pursuant to California Elections Code Section 9295, this measure will be available for public examination for no fewer than ten (10) calendar days prior to being submitted for printing in the voter information guide. The Clerk shall post notice in the Clerk's office of the specific dates that the examination period will run.

SECTION 9. *Environmental Review.* The City Council hereby finds and determines that the Measure relates to organizational or administrative activities of governments that will not result in direct or indirect physical changes in the environment and therefore is not a project within the meaning of the California Environmental Quality Act ("CEQA") and the State CEQA Guidelines, section 15378(b)(5).

SECTION 10. *Severability.* The provisions of this Resolution are severable and if any provision of this Resolution is held invalid, that provision shall be severed from the

Resolution and the remainder of this Resolution shall continue in full force and effect, and not be affected by such invalidity.

SECTION 11. This Resolution shall become effective upon its adoption.

SECTION 12. The City Clerk shall certify to the adoption of this Resolution.

APPROVED and ADOPTED this 27th day of July, 2026.

FREDDY PUZA, Mayor
City of Culver City, California

ATTEST:

JEREMY BOCCHINO, City Clerk

APPROVED AS TO FORM:

HEATHER BAKER, City Attorney

EXHIBIT "A"

ORDINANCE NO. 2026-_____

AN ORDINANCE OF THE CITY OF CULVER CITY AMENDING SECTION 11.02.105 OF THE CULVER CITY MUNICIPAL CODE, TO INCREASE THE TRANSIENT OCCUPANCY TAX FROM FOURTEEN PERCENT (14%) TO FIFTEEN PERCENT (15%) UNTIL MARCH 1, 2028, THEN TO SIXTEEN PERCENT (16%).

THE PEOPLE OF THE CITY OF CULVER CITY DO ORDAIN AS FOLLOWS:

SECTION 1: Section 11.02.105 of the Culver City Municipal Code is hereby amended, effective March 1, 2027, as follows (deletions indicated by ~~strikethrough~~ text; additions indicated by underlined text):

§ 11.02.105 TAX IMPOSED.

For the privilege of occupancy in any hotel, each transient is subject to and shall pay a tax in the amount of ~~fourteen percent (14%)~~ fifteen percent (15%) of the rent charged by the operator. Effective March 1, 2028, the tax shall be in the amount of sixteen percent (16%) of the rent charged by the operator. Said tax constitutes a debt owed by the transient to the City which is extinguished only by payment to the operator or to the City. The transient shall pay the tax to the operator of the hotel at the time the rent is paid. If the rent is paid in installments, or if any amount paid is less than the full amount of the rent and tax accrued to the time of payment, a proportionate share of the tax shall be deemed to have been paid with each such payment or installment. The unpaid tax shall be due upon the transient's ceasing to occupy space in the hotel. If for any reason the tax is not paid to the operator of the hotel, the City Treasurer may require that such tax shall be paid directly to the City.

SECTION 2. *Effective Date*. These Sections shall become effective March 1, 2027.

SECTION 3. *Amendment or Repeal.* Section 11.02.105 of the Culver City Municipal Code may be repealed or amended by the City Council without a vote of the people. However, as required by Article XIIIC of the California Constitution, voter approval is required for any amendment provision that would increase the rate of any tax levied pursuant to this Ordinance.

SECTION 4. *Severability.* If any section, subsection, sentence, clause, phrase, or portion of this Ordinance is for any reason held to be invalid or unenforceable by a court of competent jurisdiction, the remaining portions of this Ordinance shall nonetheless remain in full force and effect. The people hereby declare that they would have adopted each section, subsection, sentence, clause, phrase, or portion of this Ordinance, irrespective of the fact that any one or more sections, subsections, sentences, clauses, phrases, or portions of this Ordinance be declared invalid or unenforceable.

SECTION 5. *Execution.* The Mayor is hereby authorized to attest to the adoption of this Ordinance by the voters of the City by signing where indicated below.

I hereby certify that the foregoing Ordinance was PASSED, APPROVED and ADOPTED by the people of the City of Culver City voting on the 3rd day of November, 2026.

_____
FREDDY PUZA, Mayor
City of Culver City, California

ATTEST:

_____
JEREMY BOCCHINO, City Clerk

APPROVED AS TO FORM:

_____
HEATHER BAKER, City Attorney

STATE OF CALIFORNIA)
COUNTY OF LOS ANGELES) SS
CITY OF CULVER CITY)

Certification of Resolution No. 2026-R084

I, Jeremy Bocchino, City Clerk of the City of Culver City, do hereby certify that the foregoing Resolution was duly passed, approved, and adopted at a regular meeting of the City Council, which was held on the 27th day of July 2026, at the Mike Balkman Council Chambers by the following vote:

AYES: McMorrin, Fish, Puza

NOES: Vera

ABSENT: None

RECUSED: O'Brien

Certified on this 27th day of July 2026, at the City of Culver City.

Jeremy Bocchino, CMC, City Clerk
Ex-Officio Clerk of the City Council
City of Culver City, State of California